

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JON GILLESPIE,

Petitioner

VS.

KIMBERLEY ANDERSON,

Respondent

) Case Number: FDI-15-783244

) Hearing Date: September 17, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: CHANGE OF ESTABLISHH EXTRACURRICULAR ACTIVITIES +
SCHEDULE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Jon Gillespie (Father) and Respondent, Kimberley Anderson (Mother).
There is one minor child subject to this proceeding: Julian Conner Anderson Gillespie (DOB:
08/11/13).
- 2) On March 12, 2026, Father filed a Request for Order seeking specific orders related to
extracurricular activities. The matter was originally calendared for hearing on April 30, 2026.
- 3) On April 2, 2026, the Court (on its own motion) continued the matter to May 4, 2026.
- 4) On May 1, 2026, Mother filed a Request to Reschedule Hearing, which was granted and the
matter was continued to June 29, 2026.
- 5) On June 29, 2026, the Court held a Readiness hearing and referred the parties to FCS Mediation
to occur on August 26, 2026 and set a return hearing for September 17, 2026.
- 6) On August 7, 2026, Mother filed a Responsive Declaration in which she asks the Court to deny
Father's requests and to confirm the 2019 custody agreements. Mother has alleged that Father

1 has taken up too much of her custodial time this past Summer and she will no longer concede to
2 the deprivation of her custodial time.

3 **B. Findings and Order**

- 4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 child(ren) is the United States.
- 8 2) Father's requests are DENIED.
- 9 3) Neither parent may schedule any extra-curricular activities during the other parent's scheduled
10 parenting time, without the other parent's consent. Neither parent shall be forced to forfeit their
11 parenting time with the minor child because the other parent has scheduled activities which
12 conflict. These issues should be worked out in advance. If unable to work out an agreement,
13 then the child will not attend the activity.
- 14 4) All existing orders, not in conflict, shall remain in full force and effect.
- 15 5) The Court will prepare the Findings and Order After Hearing.
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